

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice S M Kuddus Zaman

CIVIL REVISION NO. 532 OF 2023

In the matter of:

An application under Section 115(1) of the Code of Civil Procedure.

And

Md. Saroare Hossain @ Md. Golam Saroare

... Petitioner

-Versus-

Yakub Ali Fakir and others

... Opposite parties

Mr. Md. Abu Baker Siddique, Advocate

.... For the petitioner.

Mr. Md. Sanower Hossain, Advocate

.... For the opposite party Nos.7-8

and 15.

Heard and Judgment on 21.10.2024.

This Rule was issued calling upon the opposite party Nos.1-8 to show cause as to why the judgment and order No.112 dated 07.11.2022 passed by the learned Special Judge (District and Seasons Judge) and Jononirapatta Bighnokari Oporad Daman Tribunal in Miscellaneous Case No.07 of 2016 rejecting the application for acceptance of the written objection and allow him to contest the said Miscellaneous Case 07 of 2017 should not be set aside and or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that opposite parties as plaintiffs instituted Title Suit No.87 of 1999 for declaration of title, confirmation of possession and partition and above suit was decreed on contest on 08.10.2009.

Being aggrieved by and dissatisfied with above the judgment and decree defendants preferred Title Appeal No.219 of 2009 to the District Judge, Barishal which was dismissed for default on 21.06.2016 and for readmission of above appeal above appellant filed Miscellaneous Case No.07 of 2017 under Order 41 Rule 19 of the Code of Civil Procedure which was contested by opposite party No.03 by filing written objection and the case was fixed for recording of evidence.

At this stage opposite party No.90 of above Miscellaneous Case entered appearance and submitted a written objection and filed an application for acceptance of written objection and gives the opposite party an opportunity to contest above Miscellaneous Case.

On consideration of submissions of the the learned Advocate for the respective parties the learned Judge rejected above petition vide impugned order dated 07.11.1012.

Being aggrieved by above judgment and order of the learned Special District Judge above opposite party No.90 as petitioner moved to this Court and obtained the Rule.

Mr. Md. Abu Baker Siddique, learned Advocate for the petitioner submits that the opposite parties submitted above Miscellaneous Case under Order 41 Rule 19 of the Code of Civil Procedure for readmission of Title Appeal No.219 of 2009 after a long delay of 414 days. This petitioner did not have full information about the institution of Miscellaneous Case and as soon as he was informed about the same he

appeared before the Court and alongwith a written objection and wanted to contest the case. Since the case was at the stage of recording of evidence the learned Special Judge could allow the petitioner to contest above case which would not have caused any further delay in the conclusion of trial of above case. But the learned District Judge most illegally rejected above petition of the petitioner and delivered him from contesting above Miscellaneous Case which is not tenable in law.

On the other hand Mr. Md. Shahajada, learned Advocate for the opposite party No.7-8 and 15 frankly concedes that since the petitioner appeared in the Court alongwith his written objection there would have been no further delay in the hearing of above Miscellaneous Case had the learned Special Judge accepted above written objection and allowed the petitioner to contest the case. The ends of justice will be met if this Court gives a direction upon the Court below for expeditious disposal of above case.

I have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

As mentioned above the petitioner who was opposite party No.90 of above Miscellaneous Case entered appearance in Court alongwith his written objection and wanted to contest the Miscellaneous Case. Since above case was pending for trial the learned Special District Judge should have accepted above written objection and allowed the petitioner to contest the case. But the learned Special District Judge

committed serious illegality in rejecting above petition of the petitioner and restrained him from contesting above Miscellaneous Case which is not tenable in law.

In above view of the materials on record I find substance in the submissions of the learned Advocates for respective parties that ends of justice will be met if this Rule is made absolute with a direction as mentioned above.

In the result, the Rule is hereby made absolute. The impugned order No.112 dated 07.11.2022, passed by the learned Special District Judge (District and Sessions Judge), Jononirapatta Bignokari Oporad Daman Tribunal, Barishal, in Miscellaneous Case No.07 of 2017 is set aside.

The learned Special District Judge, Barishal is directed to accept the written objection submitted by the petitioner and give him an opportunity to contest the case and conclude the trial of above Miscellaneous Case expeditiously preferably within a period of 6(six) months from the date of receipt of this judgment.

However, there is no order as to costs.